

Mahenderi v. State of U.P. and 2 Others

High Court of Judicature at Allahabad · Division Bench · 4 April 2023 · WRIT - C No. - 6224 of 2023 · **Writ disposed without merits; Executive Engineer to decide the representation within two weeks.**

HEADNOTE

A writ seeking grant of a new connection under clause 4.4 read with Annexure 4.2 on an indemnity bond was finally disposed of without any finding on entitlement. The Executive Engineer, Electricity Power Distribution Division 1, Muzaffarnagar, was directed to consider and decide the petitioner's representation by a reasoned and speaking order, in accordance with law, within two weeks of the certified copy and the representation.

FACTUAL SUMMARY

Mahenderi petitioned the Allahabad High Court for a mandamus directing the Muzaffarnagar distribution officers to grant a new electricity connection under clause 4.4 read with Annexure 4.2 of the Electricity Supply Code, 2005, by accepting an indemnity bond supplied on 18 January 2023. Respondents were the State of U.P. and two others. On 16 March 2023 a Division Bench corrected counsel names and called for instructions. On 4 April 2023 standing counsel stated that the Executive Engineer would redress her representation.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

New connection on indemnity left to the Executive Engineer

HOLDING

Without entering into the merits of the claim for a new connection under clause 4.4 read with Annexure 4.2 on the indemnity bond supplied on 18.01.2023, the writ was finally disposed of with a direction to the Executive Engineer, Electricity Power Distribution Division 1, Muzaffarnagar, to consider and decide the petitioner's representation by a reasoned and speaking order, in accordance with law, within two weeks of filing of the certified copy of the order along with a copy of the representation. ¶ 2

PRINCIPLE TAGS

direction-to-consider-connection-on-furnishing-4.4-or-annexure-4.2-documents

The petitioner sought a mandamus to grant a new connection under clause 4.4 read with Annexure 4.2 on an indemnity bond already supplied. The Court did not grant the connection. It directed the Executive Engineer to consider and decide that representation by a reasoned speaking order in accordance with law within two weeks. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO A NEW ELECTRICITY CONNECTION ON ACCEPTANCE OF THE INDEMNITY BOND SUPPLIED ON 18.01.2023 UNDER CLAUSE 4.4 READ WITH ANNEXURE 4.2.

The Court expressly did not enter into the merits and left the representation to the Executive Engineer. ¶ 2